

Smt Hemalatha vs Sunil Kumar on 31 July, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:26551
CP No. 171 of 2021

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 31ST DAY OF JULY, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 171 OF 2021

BETWEEN:

SMT. HEMALATHA
AGED ABOUT 29 YEARS,
W/O SRI SUNIL KUMAR
D/O SRI MANI
R/AT NO.42, E.T.BLOCK,
OORGAUM POST,
KOLAR GOLD FIELDS -563 120
KOLAR DISTRICT.

...PETITIONER

(BY SRI PATTABI RAMAN C., ADV.)

AND:

SRI SUNIL KUMAR
AGED ABOUT 31 YEARS,
S/O SRI VIJAYA KUMAR
R/AT NO.38, 3RD CROSS ROAD,
BASAVANAPUR MAIN,
MANJUNATHA LAYOUT,
AYYAPPANAGAR, K.R.PURAM
BANGALORE-560 036.

...RESPONDENT

(BY SRI SURYA PRASAD L, ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO ALLOW THE PETITION AS PRAYED FOR BY
TRANSFERRING THE PETITION FILED BY THE RESPONDENT HEREIN

Digitally
signed by
NANDINI B G
Location:
HIGH COURT
OF
KARNATAKA

IN M.C.NO. 4158/2020 FROM III ADDL. PRL. JUDGE, FAMILY COURT
AT BENGALURU TO CIVIL JUDGE (SR.DIV) AND JMFC AT KOLAR
GOLD FIELDS AND PASS SUCH OTHER FURTHER ORDER / ORDERS
AS IT MAY DEEM FIT AND PROPER IN THE FACTS AND
CIRCUMSTANCES OF THE CASE AND IN THE INTEREST OF JUSTICE
AND EQUITY.

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NC: 2023:KHC:26551

CP No. 171 of 2021

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE
COURT MADE THE FOLLOWING:

ORDER

Heard the learned counsel Sri.Pattabi Raman.C., for the petitioner through video conference and learned counsel Sri.Surya Prasad.L., for respondent. Perused the petition papers.

2. This petition is filed under Section 24 of CPC with a prayer to transfer M.C.No.4158/2020 filed under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (for short, '1955 Act') from III Additional Principal Judge, Family Court, Bengaluru to the Civil Judge (Sr.Div) and JMFC at Kolar Gold Fields.

3. Today, learned counsel for the respondent Sri.Surya Prasad.L., files memo dated 31.07.2023 which reads as follows:

"The Advocate for respondent humbly submits that the petitioner has filed this case seeking transfer of case from Bengaluru in M.C.No.4158/2020 before the Principal Judge NC: 2023:KHC:26551 Family Court at Bengaluru. It is further submitted that the respondent has no objection to the prayer of the petitioner. In that view of the matter, I humbly pray before this Hon'ble Court to consider my No Objection to the prayer of the petitioner and pass necessary orders."

4. The above memo would state that the respondent/husband has no objection to the prayer of the petitioner to transfer the proceedings in M.C.No.4158/2020 on the file of the Principal Judge, Family Court at Bengaluru to the Civil Judge (Sr Dv) and JMFC at Kolar Gold Fields.

5. The petition averments also indicate that CMC.No.163/2019 filed under Section 125 of Cr.P.C., is also pending on the file of the Civil Judge & JMFC at Kolar Gold Fields. Taking note of the above averments as well as memo filed by the respondent/husband, I proceed to pass the following:

NC: 2023:KHC:26551 ORDER

1) The Petition is allowed.

2) The proceedings in M.C.No.4158/2020 on the file of the III Additional Principal Judge, Family Court at Bengaluru is directed to be transferred to the Civil Judge (Sr. Div) and JMFC at Kolar Gold Fields for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms